ISSUED

JUL 15 2026

Amador County Elections

BEFORE THE BOARD OF SUPERVISORS OF THE COUNTY OF AMADOR, STATE OF CALIFORNIA

IN THE MATTER OF:

RESOLUTION CALLING FOR AN ELECTION AND PLACEMENT OF A MEASURE ON THE NOVEMBER 3, 2026 BALLOT TO RE-ESTABLISH FEES PURSUANT TO VEHICLE CODE SECTIONS 9250.7 AND 22710	)))))	RESOLUTION NO. 26-110

WHEREAS, California Vehicle Code Sections 22710 and 9250.7 authorized the establishment of the Amador County Abandoned Vehicle Authority ("AVA") in 1991 and the imposition of a fee on vehicles registered in Amador County, referred to as the AVA Fee; and

WHEREAS, these registration fees are used exclusively for the abatement, removal, and disposal of any abandoned, wrecked, dismantled, or inoperable vehicles or vehicle parts as public nuisances, on private or public property, to combat neighborhood blight and decay; and

WHEREAS, Vehicle Code Section 9250.7(g) allows an extension of the registration fees in increments of up to 10 years "if the board of supervisors of the county, by a two-thirds vote, and a majority of the cities having a majority of the incorporated population within the county adopt resolutions providing for the extension of the fee"; and

WHEREAS, the passage of Proposition 26 by California voters altered the definitions of "fee" and "tax" under the California Constitution, which likely turned the extension of the abandoned vehicle abatement fee into a tax that is subject to a 2/3 voter approval requirement.

WHEREAS, due to the impact of Proposition 26, the Board of Supervisors first placed the renewal of the AVA fee on the November 6, 2012 ballot, where it was passed by voters and extended for 10 years; and

WHEREAS, unfortunately voters chose not to renew the AVA fee when it came up again on the November 8, 2022 ballot, causing the abandoned vehicle abatement program to lose its funding; and

WHEREAS, because this funding is necessary to continue the vitally important vehicle abatement program, the Board of Supervisors, supported by every incorporated city in the county, voted to support the AVA fee and to place a measure for the AVA fee on the November 3, 2026 ballot; and

WHEREAS, pursuant to Government Code Section 53724(c) and California Elections Code Section 10401, the election shall be consolidated with the statewide general election to be held on November 3, 2026.

NOW, THEREFORE, THE BOARD OF SUPERVISORS OF AMADOR COUNTY, CALIFORNIA DOES HEREBY RESOLVE, DECLARE, DETERMINE, AND ORDER AS FOLLOWS:

1. The Board approves the extension of the AVA Fee pursuant to Vehicle Code sections 9250.7 and 22710.

2. The Board hereby orders an election and submits to the electors of Amador County the question of whether the AVA Fee, as authorized by Vehicle Code sections 9250.7 and 22710, shall be re-established for 10 years, as set forth more fully in the ballot proposition set forth below.

3. Pursuant to California Government Code Section 53724 and California Election Code Section 9140, an election is hereby called on the following ballot measure to renew the Abandoned Vehicle Abatement Program and associated fees within the County, and the ballot forms shall have printed on them the following words with regard to the measure:

MEASURE ___. Renewal of the Abandoned Vehicle Abatement Program and Fees.

> To continue addressing community blight by removing and disposing abandoned and wrecked, or dismantled vehicles, shall the Abandoned Vehicle Abatement Program and the associated vehicle registration fee of $1 per vehicle and $3 per certain commercial vehicles be re-established for a ten year period, generating approximately $55,000 annually to be used exclusively for the removal and disposal of abandoned and wrecked vehicles throughout the county and incorporated cities?

4. Pursuant to Government Code Section 53724(c) and California Elections Code Section 10401, the election on this ballot measure shall be consolidated with the statewide general election to be held on November 3, 2026, ballot, and the County Registrar of Voters is directed to take any and all necessary steps to conduct the consolidated election.

5. Arguments in favor of and in opposition to the ballot measure and rebuttal arguments shall be permitted. The County hereby adopts the provisions of Elections Code Sections 9161 through 9167 regarding the acceptance of arguments relating to ballot measures. The County Clerk shall fix the dates for submittal of arguments and rebuttals as provided for in the Elections Code.

6. The County Counsel is directed to prepare an impartial analysis of the measure pursuant to Elections Code Section 9160(b).

7. Upon approval of this measure by at least two-thirds of the registered voters voting on the measure, the Board will be authorized to re-establish the AVA Fee for 10 years.

8. This Resolution shall take effect on and after its adoption.

The foregoing resolution was duly passed and adopted by the Board of Supervisors in the County of Amador at a regular meeting thereof, held on the 14th day of July 2026, by the following vote:

AYES: Patrick Crew, Logan Carnell, Dan Epperson, Brian Oneto, Jeff Brown
NOES: None
ABSENT: None

Patrick Crew, Chairman, Board of Supervisors

ATTEST:
HEATHER PEEK,
Clerk of the Board of Supervisors